

CONTRACT RISK REPORT

demo_contract_v2.docx

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Overall Risk Score	Total Clauses	High-Risk Clauses	Compliance Violations
67/100	20	6	4

Executive Summary

This analysis is prepared from the Client's p

Executive Summary for Contract Review

The overall risk posture of the contract is elevated due to several high-risk clauses, which pose significant legal risks (e.g., Clause 5 (Data Processing), Clause 6 (Intellectual Property), Clause 10 (Warranties), and Clause 11 (Ind

The contract also raises significant compliance concerns. Key compliance issues include the lack of specific references to PCI-DSS standards, as well as the absence of explicit CCPA provisions. Furthermore, the contract does not specify a data retention period, which is a requirement under CCPA.

To mitigate these risks, we recommend that the Client ensure that PCI-DSS to be followed in Clause 5, (2) include references to PCI-DSS 8, and (3) explicitly state that payment card data is processed in accordance with PCI-DSS. Additionally, we suggest that the Client consider adding a data retention clause in 8. To address the compliance violations, we recommend the Client request the other party to rectify the issues.

Clause Risk Scores

#	Type	Heading	Score	Severity	Key Flags
6	Intellectual Property	5. Intellectual Property	80	CRITICAL	Exclusive Ownership, Limited License, No...
9	Service Level...	8. Service Level Agreement	60	HIGH	Availability Guarantee, Response Time...
11	Indemnification	10. Indemnification	60	HIGH	Indemnification, Third-Party Claims
5	Payment	4. Payment Card Processing	40	HIGH	Standard PCI-DSS Compliance, complianc...
8	Data Protection	7. Data Protection and Security	40	HIGH	Data Protection, Notification Requirement...
10	Warranty	9. Warranties	40	HIGH	Warranty, No Reciprocal Warranties, No...
7	Confidentiality	6. Confidentiality	25	MEDIUM	Confidentiality Agreement, Standard Terms
12	Limitation Of...	11. Limitation of Liability	10	LOW	Capped Liability, Exclusions

#	Type	Heading	Score	Severity	Key Flags
1	Governing Law	MASTER SERVICES...	0	LOW	-
2	Governing Law	1. Definitions	0	LOW	-
3	Service Level...	2. Services	0	LOW	Standard Service Level Agreement
4	Payment	3. Fees and Payment	0	LOW	Standard Payment Terms
13	Termination	12. Term and Renewal	0	LOW	Clear Term, Termination Notice
14	Termination	13. Termination	0	LOW	Clear Termination, Data Protection
15	Assignment	14. Assignment	0	LOW	Assignment Restrictions, Exceptions
16	Force Majeure	15. Force Majeure	0	LOW	-
17	Dispute Resolution	16. Governing Law and...	0	LOW	-
18	Other	17. Notices	0	LOW	-
19	Other	18. Platform Description	0	LOW	-
20	Other	19. Entire Agreement	0	LOW	-

Compliance Issues

Clause #	Framework	Article	Issue
5	PCI-DSS	Not specified	The clause does not specify the version of PCI-DSS to be followed, which may...
5	CCPA	Not specified	The clause does not provide any information about the handling of personal dat...
8	CCPA	-	The clause does not specify data retention limits or data minimization...
8	PCI-DSS	-	The clause does not explicitly state that payment card details, cardholder data, o...